

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

AUDLEY MUSCHETTE

SUMMONS

Plaintiff.

-against-

Index No.

Date Index No. Purchased

Plaintiff Designates Bronx County
as Place of Trial

Pursuant to C.P.L.R. 509

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. GLADIS CARDENAS, SHIELD NO.
4338, IN HER INDIVIDUAL CAPACITY, AND JOHN DOES
1-7, IN THEIR INDIVIDUAL CAPACITY AS POLICE OFFICERS
OF THE CITY OF NEW YORK.

Defendants,

X

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: April 2, 2022

Bronx, New York

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City of New York Department of Law
100 Church Street
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****X****AUDLEY MUSCHETTE****Plaintiff.****-against-****ECF
COMPLAINT****Index No.****Plaintiff Designates****Bronx County as Place of Trial.****Jury Trial Demanded****CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. GLADIS CARDENAS, SHIELD NO.
4338, IN HER INDIVIDUAL CAPACITY, AND JOHN DOES
1-7, IN THEIR INDIVIDUAL CAPACITY AS POLICE OFFICERS
OF THE CITY OF NEW YORK.****Defendants,****X**

Plaintiff, Audley Muschette by his attorney, Welton K. Wisham, Esq. of The Law office of Welton K. Wisham, alleges the following upon information and belief, against Defendants, The City of New York, the New York City Police Department, and Police Officers, Gladis Cardenas, and John Does 1-7, that:

PRELIMINARY STATEMENT

1. This action is filed on behalf of Mr. Audley Muschette who is deaf and hearing impaired who's only means of communication is through use of American Sign Language. (Hereinafter, ASL).
2. On April 8, 2021, Mr. Muschette called 911 by activating the FCC approved hearing-impaired system inside his residence that connected Plaintiff with a sign interpreter who assisted Plaintiff in calling the 911 operator.
3. Mr. Muschette called for police assistance because he believed that members of the New York City Police Department had been constantly following him without justification.

4. Approximately seven (7) New York City Police officers arrived at Plaintiff's residence located at 3121 Villa Ave. Apt 7H, Bronx, New York.
5. The officers rushed inside Plaintiff's residence and began to question Mr. Muschette in an aggressive manner without an interpreter.
6. Officer Cardenas of the 52nd police precinct and other unknown police officers grabbed Mr. Muschette around his shoulders and forced Plaintiff's hands behind his back and placed Plaintiff's hands in handcuffs.
7. Several members of Plaintiff's family were present and witnessed the incident, all of whom are hearing impaired or deaf and require an American Sign Language Interpreter to communicate.
8. Officer Cardenas arrested Plaintiff and charged Mr. Muschette with committing an assault against his son, Amato Maurice Muschette. Plaintiff was also charged with Harassment in the Third Degree.
9. Amato Muschette attempted to inform the officers on the scene that he was not pressing charges against his father due to the incident because his father accidentally threw a pot toward him.
10. The officers willfully ignored Amato Muschette intent not to file criminal charges against his father and arrested Audley Muschette without questioning the Plaintiff as to what had occurred inside his residence.
11. The officers ignored Plaintiff's inability to hear and speak and failed to have a qualified ASL interpreter on the scene at the time of Plaintiff's arrest.
12. Plaintiff was taken to the hospital for treatment of his injuries inflicted upon him by officer Cardenas and the other unknown police officers.

13. Officer Cardenas, with the assistance of the other unknow police officers, shackled Mr. Muschette's legs for approximately seven (7) hours as the Plaintiff waited for medical treatment in the hospital.

14. Mr. Muschette was prevented from communicating the pain he was suffering from the tightness of the handcuffs because the officers on the scene made no attempt to communicate with the Plaintiff by using sign language..

15. Plaintiff suffered severe pain to his wrists, legs and shoulders from the excessive forced and restraints used by officer Cardenas and the other unknown John Does during the course of Plaintiff's arrest .

16. All charges against the Plaintiff were favorably dismissed on June 1, 2021.

17. This action against the Defendants is brought pursuant to the American with Disabilities, the New York State Human Rights Act, and under New York City Executive law prohibiting discrimination against individuals such as Mr. Audley Muschette.

18. Plaintiff also brings this action pursuant to 42 U.S.C. Section 1983, and under Section 1988 against the individual police officers for False Arrest, False Imprisonment, and violation of Plaintiffs' right arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

19. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and caused injury to the Plaintiff within the State of New York..

20. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action pursuant to 42 U. S. C. Section 1983.

VENUE

21. Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a). The facts alleged herein occurred in the Bronx, New York.

PARTIES

22. Plaintiff, Audley Muschette, is a citizen of the United States and is a resident of Bronx County, State of New York at the commencement of this action.

23. Mr. Muschette at all times relevant herein, is deaf and hearing impaired whose only method of communication is through the use of sign language.

24. Police Officer Gladis Cardenas is a duly appointed New York City Police Officer who at the time of this incident was assigned to the 52nd police precinct located at 3016 Webster Ave. Bronx, New York.

25. Officer Cardenas was acting within the scope of her employment and under color of law as an employee of the New York City Police Department on the date of this incident.

26. That officer Cardenas was at all times mentioned in this Complaint acting on behalf of the City of New York and the New York City Police Department as an agent, servant, and employee, acting within the scope of her employment by Defendant, City of New York.

27. That officer Cardenas, being a duly appointed police officer in the New York City Police Department acted under color of law, that is under color of law of the Constitution of the United States and statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

28. That at all times relevant herein, Defendants, John Does, 1-7, were and remain duly appointed New York City Police Officers who at the time of this incident believed to be assigned to the 52nd police precinct.

29. John Does, 1-7, were acting within the scope of their employment and under color of law as an employee of the New York City Police Department on the date of this incident.

30. The John Does officers were at all times mentioned in this Complaint acting on behalf of the City of New York and the New York City Police Department as agents, servants, and employees, acting within the scope of their employment by Defendant, City of New York..

31. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant police officers.

32. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

STATEMENT OF FACTS

33. That on or about April 7, 2021, Plaintiff, Audley Muschette saw unidentified New York City Police officers who Mr. Muschette believed were following him near his neighborhood for no apparent reason..

34. The officers had followed the Plaintiff for several blocks near Plaintiff's residence causing Mr. Muschette anxiety and alarm.

FCC Video Assistance for Hearing Impaired.

35. To assist individuals that suffer from being deaf, and or hearing impaired, the Federal Communication Commission has approved a telephonic system that allows individuals such as the Plaintiff and his family to communicate with society and non handicapped individuals by

using an FCC approved video relay system that automatically allows a interpreter who speaks and is certified as an American Sign Language Interpreter to see the caller and use sign language to interpret the callers' conversations.

36. Plaintiff has a FCC approved system installed inside his residence that was functioning on April 9, 2022, at the time Mr. Muschette called 911 for police assistance.

Plaintiff's Arrest

37. Plaintiff became suspicious as to why police officers were following him and called 911, on April 8, 2022, to inform the New York City Police Department that police officers were following him and to ask why he was being followed.

38. At approximately 2:00 pm, in the afternoon, numerous police officers, approximately seven (7) or eight(8) entered Plaintiff's residence located at 3121 Villa Ave. Apt 7H, Bronx, New York.

39. The officers pushed themselves inside Plaintiff's residence.

40. Plaintiff's wife, Judith Muschette, and his sons Amato Muschette, Justin Muschette, Auden Muschette , were all present when the police entered Plaintiff's home.

41. Plaintiff's daughter, Jacquetta Muschette and Plaintiff's mother, Marian Muschette were also present and witnessed the unfolding events as set forth herein.

42. All of Plaintiff's family members are either deaf, or hearing impaired and communicated solely through the use of sign language.

43. Audley Muschette was immediately placed in handcuffs by officer Gladis Cardenas without any attempt by the officers to question the Plaintiff, or to communicate with the Plaintiff by sign language regarding why he was being arrested.

44. Mr. Muschette was prohibited from communicating by sign language with any member of his family or to give gestures to the officers because Plaintiff's hands were bound behind his back in handcuffs.

45. None of the officers appeared to have been properly trained in the use of sign language even though they knew or should have known that the Plaintiff and his family were hearing impaired and unable to speak.

46. One officer on the scene appeared to know some sign language and was attempting to communicate with Plaintiff's son Amato, though the officer's communication skills were troubling to Amato who had difficulty communicating with the police officer.

47. A female officer on the scene knew little sign language but failed to communicate to anyone in Plaintiff's family what exactly was going on and why Plaintiff was being arrested.

48. Amato Muschette tried repeatedly to request the officers allow him or someone else in the Plaintiff's family to use the FCC installed Video Remote Interpreter because a certified sign language interpreter was needed immediately to enable him and Plaintiff's family to effectively communicate with the officers on the scene.

49. Amato's request was denied.

50. According to Amato Muschette, the police officers on the scene requested the members of Plaintiff's family to communicate with the officers on the scene by using the family's telephones and to text their messages to the police as a way to communicate with the officers inside Plaintiff's residence.

51. Amato became upset with the request and repeated his request for an ASL interpreter to properly communicate with the police officers inside his home.

52. The officers began to laugh at the Plaintiff and Plaintiff's family members due to their inability to speak with the officers.

Police mocking Family because of Deafness

53. According to Plaintiff's son Amato, the police were asking him " **why you guys calling police you calling cops for stupid reason.**"

54. The officers on the scene were ill prepared to interact with Plaintiff and Plaintiff's family members who are hearing impaired.

55. Neither Plaintiff nor any of Plaintiff's family members were confrontational with the officers on the scene

Amato did not want Father Arrested.

56. Officer Cardenas placed Plaintiff's hands behind his back and proceeded to place handcuffs around Mr. Muschette's wrists. Mr. Muschette was grabbed by approximately five officers around his shoulders who placed Plaintiffs' hands behind his back.

57. Plaintiff was removed from his residence and placed inside a police vehicle.

58. Amato who had difficulty expressing himself to the arresting officer and other officers on the scene, informed the police that his father had accidentally hit him with a pot and that Amato did not want to press charges against his father.

59. Officer Cardenas and the other officers on the scene ignored the fact that Amato was not going to press charges against his father and arrested Plaintiff and drove Plaintiff to the 52nd police precinct where Plaintiff was placed in a jail cell for several hours.

60. Plaintiff's wrist were in severe pain because officer Cardenas placed Plaintiff's hands in handcuffs without considering whether the handcuffs were too tight. Plaintiff was withering in pain unable to speak or use sign language to beg the officers to loosen the handcuffs.

61. According to Amato Muschette, one of the officers asked him if he wanted to press charges against his father for throwing the pot at him and Amato told the officer no.

62. Amato told the officers that he did not want his father arrested for the incident because it was an accident. " You don't need to arrest my father because it was an accident"

63. Amato's Muschette's refusal to prosecute his father was made known to the arresting officers on the scene before Mr. Muschette was driven to the 52nd precinct.

64. Officer Gladis Cardenas arrested Plaintiff, Audley Muschette and charged Plaintiff with Assault in the Third Degree, P.L. Section 120.00 and Harassment in the Second Degree, P.L. Section 240.26 (11)

65. That upon information and belief, no one in Plaintiff's family had called the police on the Plaintiff due to the throwing incident.

66. All charges filed against Plaintiff, Audley Muschette were favorably dismissed on June 1, 2021.

Injuries to Plaintiff by Police

a) wrists injury from handcuffs

67. That the arresting officer injured Plaintiff's wrists when the officer placed Plaintiff's hands behind his back in handcuffs. Plaintiff hands remained handcuff for three hours.

68. Plaintiff experienced extreme pain in both wrists when the officer placed handcuffs around Plaintiff's wrists.

69. Plaintiff was prevented from communicating the fact that the handcuffs were hurting him because he could not communicate by sign language because his hands were in handcuffs behind his back, Plaintiff was unable to speak.

70. The officers made no attempt to communicate with the Plaintiff and never asked the Plaintiff about his wellbeing during this encounter.

71. The arresting officer engaged in excessive force by placing the handcuffs around Plaintiff's wrists for three hours which caused Plaintiff to suffer extreme pain and agony.

72. Mr. Muschette was left in the 52nd precinct for approximately three hours without a certified sign language interpreter.

73. Plaintiff was unable to inform the officers of the pain he was experiencing from the forced used by the officers during the course of Plaintiff's arrest.

Treatment at Hospital

74. Mr. Muschette was taken from the precinct in shackles and handcuffs to Lincoln Hospital on 234 E149th St, Bronx, New York.

75. Plaintiff was examined by David Singer, MD who found that Mr. Muschette's left wrist showed signs of tenderness and Plaintiff's right wrist exhibited decreased range of motion.

b) Injury to Shoulder

76. Mr. Muschette's shoulders were injured from the officers' use of force in arresting the Plaintiff inside his home.

77. Dr. Singer confirmed Plaintiff's complaint of shoulder pain by examining Plaintiff's shoulders. Plaintiff's right shoulder exhibited decreased range of motion, tenderness and pain.

78. Plaintiff's left shoulder exhibited no signs of loss of motion.

79. Plaintiff was released from Lincoln Hospital in custody of the New York City Police Department.

c) Legs Shackled

80. Mr. Muschette's legs were placed in shackles by the New York City Police Department at the 52nd police precinct as the Defendants prepared to take Plaintiff to Lincoln Hospital.

81. Mr. Muschette posed no risk of flight during the course of his arrest yet Plaintiff was subjected to shame, humiliation and embarrassment when shackles were placed on his legs without legal justification.

82. Plaintiff's legs were shackled for approximately six (6) hours without legal justification.

83. Mr. Muschette felt pain in his ankles due to the shackles.

84. Plaintiff was caused to suffer severe pain and emotional trauma from the officers' use of force in arresting him without justification.

85. Plaintiff was not afforded a competent sign language interpreter despite the obligation imposed on the City of New York and the New York City Police Department as set forth under the **American with Disabilities Act** and pursuant to New York State and New York City law .

86. The City of New York, and the New York City Police Department is also obligated to provide arrestees with a qualified sign language interpreter to allow proper communications with the deaf and hearing impaired as set forth under a prior settlement agreement with the United States of America to resolve claims of Deaf discrimination by the New York City Police Department.

87. Mr. Muschette was extremely upset with the officer's constant mocking of him and his family because of their inability to communicate with the police due to being deaf and hearing impaired..

88. Plaintiff repeatedly attempted to inform the officers of the pain he was suffering when the Defendant officers grabbed him and forced his hands behind his back by invoking facial expressions which the officers ignored.

89. That the officers intentionally and or recklessly ignored Mr. Muschette and his family's pleas for help in providing a sign language interpreter to enable Plaintiff and his family to communicate with the officers inside Plaintiff's residence.

90. The officers humiliated Plaintiff and his family when the officers laughed and mock at the family's deafness and inability to communicate.

91. Due to the above actions by officer Cardenas and the other unidentified police officers that directly participated in Plaintiff's arrest and use of force, Mr. Muschette was caused to suffer and continues to suffer emotional distress, pain, and humiliation.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER GLADIS
CARDENAS PURSUANT TO U.S.C SECTION 1983, FOR VIOLATING PLAINTIFF'S
RIGHTS ARISING UNDER TITLE II OF THE AMERICAN DISABILITIES ACT.**

92. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 91", with the same force and effect as though more fully set forth at length herein

93. Title II of the American with Disabilities Act , (ADA) states in relevant part that "[N]o qualified individual with a disability shall , by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs , or activities of a public entity, or be subjected to discrimination by any such entity." 42 U.S.C Section 12132.

94. Title II of the ADA defines" public entity" to include any department, agency, special purpose district, or other instrumentality of a State or States or local government." 42 U.S.C Section 12131(1)(B).

95. The ADA defines a disability as a “ physical or mental impairment that substantially limits one or more major life activities.” **42 U.S.C Section 12102(1)(A).**

96. Plaintiff Audley Muschette is a qualified individual in accordance with the American with Disabilities Act.

97. That at all times relevant to this Complaint , Title II of the ADA was in full force and effect and applicable to the Defendants.

98. That at all times mentioned in this action, Plaintiff had and continues to be substantially limited in the major life activities due to hi inability to hear and speak. Plaintiff is deaf and hearing impaired.

99. Mr. Muschette is considered a qualified individual under the ADA with a disability as defined under the ADA, pursuant to **42 U.S.C Section 12131(2).**

100. Federal Regulations implementing Title II of the American with Disabilities Act state that a public entity may not “(1) deny a qualified individual with a disability the opportunity to participate in or benefit from the aid, benefit, or service; (ii) afford a qualified individual with a disability and opportunity to participate in or benefit from the aid , benefit, or service that is not equal to that afforded others; [or] (iii) provide a qualified individual with a disability with an aid, benefit or service that is not as effective in affording equal opportunity to obtain the same result, to gain the same benefit, or to reach the same level of achievement as that provided to others” **28**

C.F.R. Section 35.130(b)(1)

101. Moreover, the Federal Regulations implementing Title II of the ADA state that “ a public entity shall furnish appropriate auxiliary aids and services where necessary, and in order to be effective, auxiliary aids and services must be provided in accessible formats, in a timely manner

and in such a way as to protect the privacy and independence of the individual with a disability
.”. **28 C.F.R. Section 35.160(b)**

102. That the City of New York, The New York City Police Department in the instant case had an affirmative obligation under the ADA to make benefits, services and programs accessible to Plaintiff Muschette.

103. The Defendants knowingly and willfully stood by while Mr. Plaintiff and his family pleaded with the arresting officers to provide a qualified sign language interpreter on the scene so that the Plaintiff and his family could effectively communicate with the officers inside Plaintiff's home prior to Plaintiff's arrest.

104. The Defendants knowingly and willfully failed to provide and denied Plaintiff access to a qualified sign language interpreter during the course of Plaintiff's arrest and confinement inside the 52nd police precinct.

105. The Defendants discriminated against the Plaintiff on the basis of his disability of being deaf and hearing impaired by excluding Plaintiff from participation in and by denying the Plaintiff the benefits of the services provided to non-disabled inmates in violation of the ADA.

106. The Defendants are liable to the Plaintiff for violating Plaintiff's rights arising under the ADA.

107. That the Defendants intentionally violated Mr. Muschette's constitutional rights for which the Plaintiff is therefore entitled to compensatory damages and an award of attorney fees , costs and disbursements for the physical and emotional injuries he suffered due to the discriminatory conduct as herein alleged pursuant to **Title II of the American with Disabilities Act, 42 U.S. C. Section 12133.**

108. It is well settled law that the anti- discrimination provisions under the American with Disabilities Act and Section 504 of the Rehabilitation Act are enforceable through an implied private right of action. See **Barnes v. Gorman**, 536, U.S. 181, 185 (2002).

109. Law enforcement officers such as the Defendants in the instant case, acting in an investigative or custodial capacity are performing services , programs and activities withing he scope of Title II of the American with Disabilities Act.

110. Officer Cardenas and the unidentified police officers involved in the arrest, detainment and confinement of Plaintiff, Audley Muschette, discriminated against the Plaintiff by failing to provide reasonable accommodations during the course of Plaintiff's arrest.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND OFFICERS GLADIS CARDENAS FOR VIOLATING PLAINTIFF'S RIGHTS UNDER SECTION 504 OF THE REHABILITATION ACT PURSUANT TO 42 U.S.C. SECTION 1983.

111. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 110", with the same force and effect as though more fully set forth at length herein

112. **Section 504 of the Rehabilitation Act** (the Act) provides that " no otherwise qualified individual with a disability.. shall solely by reason of his or her disability , be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance." **29 U.S. C. Section 794.**

113. That at all times relevant herein , Section 504 of the Rehabilitation Act was in full force and effect as applied to the Defendants in this action.

114. At all times relevant to this Complaint, Mr. Audley Muschette had substantial limitations to the major life activities with respect to inability to speak and hear and is an individual with a disability within the meaning of the **Rehabilitation Act, pursuant to 29 U.S.C Section 705(9).**

115. That the City of New York and the New York City Police Department engages in a program or activity that upon information, and believe, have received federal financial assistance pursuant to **29 U.S.C. Section 794(b).**

116. That the Rehabilitation Act extends relief to “ any person aggrieved by discrimination in violation thereof.” **29 U.S .C. Section 794(A)(2)**

117. The Defendants discriminated against Mr. Muschette on the basis of his disability in violation of the **Rehabilitation Act**.

118. That the individual Defendants in this action have knowingly and willfully failed to implement policies and procedures and training of its staff to ensure compliance with the Rehabilitation Act and the accompanying Regulations.

119. Plaintiff is profoundly deaf and his only means of communication is by use of the American Sign Language.

120. Plaintiff is a qualified individual under the law.

121. The Defendant police officers knew that Mr. Muschette was deaf and hearing impaired at the time the officers entered Plaintiff's residence on April 8, 2021.

122. Mr. Muschette was therefore entitled to the same law enforcement services and benefits provided by the New York City Police Department to non-disabled persons.

123. That officer Cardenas and the unidentified police officers as well as the City of New York and the New York City Police Department discriminated against the Plaintiff on the basis of his disability and failed to provide Plaintiff with reasonable accommodations at the time of Plaintiff's arrest.

124. As a direct and proximate result of the Defendant's discriminatory conduct , Mr. Muschette was caused to suffer undue emotional pain and physical suffering when the Defendants engaged

in aggressive use of force that left Plaintiff's wrists and shoulders in pain for which Plaintiff sought medical treatment..

125. Mr. Muschette suffered emotional distress and agony caused by the Defendants unreasonable act of placing Plaintiff's legs in shackles for three hours without probable cause..

126. Mr. Muschette is therefore entitled to compensatory damages , attorneys fees and costs for the physical and emotional injuries he suffered during the course of his arrest, detention and deprivation of his liberty as a result of the Defendant's discriminatory conduct and deliberate indifference as set forth herein pursuant to 29 U. S. C. Section 794(a) , and pursuant to 42 U. SC. C. Section 1983.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS GLADIS
CARDENAS AND JOHND DOES 1-7 FOR VIOLATING PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE SEIZURE AND UNREASONABLE USE OF FORCE
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE
CONSTITUTION OF THE UNITED STATES**

127. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 126", with the same force and effect as though more fully set forth at length herein.

128. Plaintiff was harassed, beaten, arrested, ridiculed and humiliated by the Defendants police officers who use extreme and excessive. and unreasonable force during the course of Plaintiff's arrest.

129. Mr. Muschette suffered significant injuries to his wrists, shoulders and ankles as set forth in the aforementioned paragraphs when the Defendant officers violently and maliciously grabbed Plaintiff around his shoulders and forced Plaintiff's hands behind his back and placed Plaintiff's hands in handcuffs without determining whether the handcuffs were placed too tightly around Mr. Muschette's wrists.

130. Mr. Muschette was withering in pain due to tightness of the handcuffs..

131. Plaintiff was not resisting the officers 'unlawful arrest at the time of his unreasonable and unlawful seizure.

132. Plaintiff's suffered undue pain in his wrists, shoulders and ankles when the Defendants placed Mr. Muschette in legs restraints in the hospital for seven hours.

133. Plaintiff's pain, and anxiety was exacerbated due to his inability to communicate his pain from the handcuffs, shoulder and ankles because the Defendants failed to provide an American Sign Language Interpreter.

134. Plaintiff Muschette was unreasonably seized by officers Cardenas and the John Does police officers from the 52nd police precinct who violated Plaintiff's Constitutional right to be free from unreasonable seizure including being free from excessive use of force.

135. Mr. Muschette had not threatened any officer on the scene nor was the Plaintiff a flight risk

136. That placing legs restraints on Plaintiff's legs for seven hours as Plaintiff was seeking medical treatment inside the emergency room at Lincoln Hospital was objectively an unreasonable seizure under the Fourth Amendment to the Constitution of the United States.

137. That the Fourth Amendment forbids the use of substantial force against a non-threatening suspected who is not fleeing, resisting arrest or posing any risk to the safety of other.

138. For the reasons set forth herein, officers Gladis Cardenas and John Does 1-7 of the New York City Police Department are liable to the Plaintiff pursuant to 42 U.S.C Section 1983 for the physical injuries and emotional distress inflicted upon the Plaintiff by the Defendants unreasonable and unlawful seizure and unreasonable use of force in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR NEGLIGENT HIRING AND SUPERVISION OF OFFICER GLADIS CARDENAS
AND JOHN DOES 1-7, PURSUANT TO 42 U.S. C. SECTION 1983.**

139. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "138", with the same force and effect as though more fully set forth at length herein.

140. That the City of New York and the New York City Police Department knew or should have known that Plaintiff, Audley Muschette was deaf and hearing impaired at the time he call for police assistance on April 8, 2021.

141. That the City of New York and the New York City Police Department had a duty to provide Plaintiff with an ASL Interpreter at the time the officers entered Plaintiff's residence.

142. That the City of New York knew or should have known that the officers sent to respond to Plaintiff's call for police assistance through Plaintiff's FCC approved video communication for the deaf and hearing impaired, were not properly trained in communicating with Plaintiff as an Interpreter in American Sign Language.

143. The City of New York knowing that such officer were ill equipped in communicating with the hearing impaired, retained these officers and enabled the Defendant officers to take such actions as set forth above.

144. That the City of New York and the New York City Police Department could have prevented Plaintiff's injuries if the Defendants were not negligent in failing to train and supervise the police officers who engaged in the investigation, arrest, detention and deprived Plaintiff's liberty without probable cause and without due process of law.

145. For the reasons set forth herein, officers the City of New York and the New York City Police Department are liable to the Plaintiff pursuant to 42 U.S.C Section 1983 for the physical

injuries and emotional distress inflicted upon the Plaintiff due to the Defendants' failure to properly provided Plaintiff with an American Sign Language Interpreter in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST POLICE OFFICER GLADIS
CARDENAS AND JOHN DOES 1-7, FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42 U. S .C. SECTION 1983.**

146. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 145". with the same force and effect as though more fully set forth at length herein.

147. That at all time herein mentioned Defendants police officers Gladis Cardenas and John Does 1-7, directly participated and caused Plaintiff's injuries and false arrest, detention and deprivation of liberty by commencing a prosecution against the Plaintiff for which the officers knew or should have known was an accident as told to the officers by Plaintiff's son Amato Muschette and that the arrest of Plaintiff lacked probable cause to have reasonably believed that the Plaintiff had committed the alleged criminal offenses as set forth in the Criminal Complaint filed by Defendant Gladis Cardenas.

148. That the Defendant police officers met with each other and conferred false, misleading information against Mr. Audley Muschette and refused Plaintiff's son Amato request not to arrest his father because the incident was in fact an accident.

149. That Plaintiff was unreasonably held against his will, unable to move and unreasonably seized and arrested by the Defendant police officers.

150. Mr. Muschette was conscious of his arrest, detention and seizure and did not consent to his confinement.

151. Plaintiff's arrest, seizure and detention in police custody lacked probable cause.

152. Defendants Cardenas and officers John Does 1-7, as police officers in the City of New York acted in substantial abuse of their power as New York City Police Officers and acted beyond their authority.

152. The officers willfully, knowingly, and intentionally deprived Mr. Muschette of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

153. Defendants forcibly handcuffed, searched, seized, assaulted, and subjected Plaintiff to undue humiliation, personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn by placing shackles on Plaintiff's legs for seven hours without legal justification.

154. As a direct and proximate result of Officers' Cardenas and John Does, 1-7, misconduct and abuse of authority described above, Plaintiff Audley Muschette sustained damages for which he now seeks in an amount which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff **Audley Muschette** hereby demands judgment and relief against Defendants jointly and severally as follows:

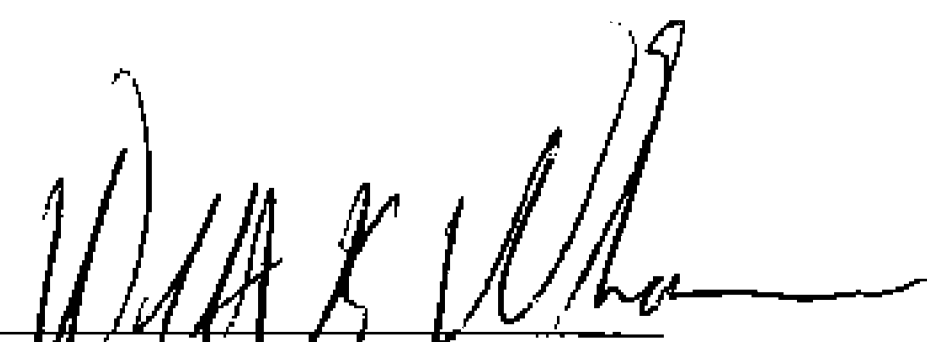
A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff against officers Gladis Cardenas and John Does, 1-7, in an amount that would punish the Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to Plaintiff of the costs and disbursements herein.

- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: April 2, 2022
Bronx, New York

By 
Welton K. Wisham, Esq.

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X

AFFIDAVIT

Index No.

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. GLADIS CARDENAS, SHIELD NO.
4338, IN HER INDIVIDUAL CAPACITY, AND JOHN DOES
1-7, IN THEIR INDIVIDUAL CAPACITY AS POLICE OFFICERS
OF THE CITY OF NEW YORK.**

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SS. 2

Bv

WELTON K. WISMANN, ESQ.
Notary Public, State of New York
~~No. 067-98934~~
Qualified in Bronx County
Commission Expires _____

Ygr-
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1-28-2023